TAMANDA SARAH JANE BENYURE
versus
COLIN TICHAONA BENYURE

HIGH COURT OF ZIMBABWE
MHURI J
HARARE; 26 February & 19 March 2026

Opposed Application

G Ganda, for the applicant
R.J Tsivama, for the respondent

MHURI J: This is an application in terms of R67 of the High Court Rules 2021 wherein applicant is seeking contribution towards legal costs in a matrimonial matter under HCHF 279/25 between respondent and applicant in which respondent is suing for divorce and other ancillary relief.

The applicant seeks an order in the following terms:

> "1. The application be and is hereby granted.
>
> 2. That the Respondent shall contribute towards the Applicant's legal costs in the sum of USD 4 000.00
>
> 3. The Respondent shall bear costs of suit."

The facts giving rise to this application are that applicant and respondent were married on 2 March 1999, which marriage still subsists.

To substantiate her case, the applicant submitted that in order to succeed she has to prove that respondent has the ability to contribute and that applicant has need for financial assistance. She averred that she has need for financial assistance. Though she is employed earning USD$2830.00 what she earns is only enough for herself and the child. On this amount she is unable to meet the legal costs. Ms *Ganda* argued that applicant and respondent held a joint account which had USD$100 000.00 which respondent withdrew without applicant's knowledge and consent and used it for his personal expenses.

With regards the respondent's ability to contribute, applicant contended that the respondent is misrepresenting that he is a civil servant earning a bare minimum salary. She

averred that the respondent withdrew the USD$100 000.00 that money is still in his possession which he can use to contribute to applicant's legal costs. Applicant further submitted that respondent is a medical doctor, he receives moneys from the International Medical Fund. It was further argued that there is a Family Trust comprising of two properties. The Trust was formed and is managed by the respondent who receives proceeds from the two properties and therefore he has the financial means to contribute to applicant's legal costs.

In opposing the application, Respondent submitted that r67(1) places an onus on the applicant to prove that she is without means to prosecute or defend the proceedings. In casu,applicant has not provided evidence or demonstrated lack of means. The matter is now at PTC stage which means applicant has so far demonstrated her ability to defend it. Mr *Tsivama* argued that applicant earns over USD$2800.00, she has no rent obligations and has not explained how the USD$2800.00 is utilised other than the need to take care of herself and the child, thus she has the means to defend the divorce proceedings. It was further submitted that applicant pointed to renovations already taken care of by herself which repairs and expenses were supposed to have been for the previous tenant. The loan she took for the generator has since been repaid, as such, Applicant is in a financial position to defend and prosecute her counter claim, so argued Respondent.

Respondent further submitted that he is a civil servant earning a salary of ZWL$24 000.00 which is equivalent to USD$900.00. There is nothing misleading about his salary. With regards the USD$1000.00 from International Medical Fund, it was respondent's submission that the amount was a single income. Applicant should have attached her bank statement to disprove that it was only a single transaction. Applicant is being speculative that respondent earns more than the amount indicated on the record. It was Mr *Tsivama*'s contention that in the divorce proceedings applicant is claiming USD$50 000.00 of the USD$100 000.00. Praying for the dismissal of the application, respondent further argued that the rentals that he is collecting from the Family Trust properties are also subject to determination by the trial Court on whether or not they form part of the matrimonial property. He submitted further that the amount is US$1200 and does not accrue to him.

As stated earlier, this application is made in terms of r 67 of the High Court Rules 2021. The Rule provides as follows :

(1) When a spouse is <u>without means</u> to prosecute or defend an action for divorce, judicial separation or nullity of marriage, the court <u>may</u> on application order the other spouse to contribute to his or

her costs, and where necessary, to his or her maintenance pending litigation, such sums as it deems reasonable and just.

(2) Such an application must be supported by an affidavit stating shortly the grounds of the action or defence and that the applicant has insufficient means with which to prosecute or defend the action, as the case may be, and insufficient means to support himself or herself pending litigation, and whatever information is available respecting the spouse's financial position."
(underlining my own).

In *Dube* v Mavako-*Dube 2006 (2) ZLR 97 at page 101, D-E, the Court had this to say*:

> "…..the claim for contribution towards costs in a matrimonial suit is sui generis. It has its origin in Roman-Dutch procedure, and has been sanctioned through many decades of practice……Its basis is the duty of support spouses owe each other and its purpose is to enable a spouse, who would otherwise not be able to do so, to place his or her case adequately before the court…''

At paragraph G-F, the Court went on to echo that:

> "It is trite that no contribution order will be granted if the wife is well able to afford the costs of the action herself, either because she has a substantial separate estate or because she has an income, savings or other assets which are under her control.''

The requirements are as follows:

(a) There must be a subsisting marriage;
(b) The suit in question is a matrimonial one
(c) The applicant has a reasonable prospect of success
(d) The applicant is not in a financial position to bring or defend the action
(e) The other spouse is able to provide the applicant with the contribution

In this case the onus is on the applicant to show that she does not have the necessary means while her husband is able to make a contribution.

It is common cause that applicant earns around USD$2800.00 monthly, which salary she alleges she uses to maintain herself and her minor child. She however has not shown how much of this amount she uses to maintain herself and the child. She did not refute the averments that she has no rental obligations, that she collected all the movable property that she required, that the loan she obtained has since been repaid, that Respondent pays fees and cares for the child during the period he has custody of him, neither did she refute that she is claiming US$50,000 from the US$100,000 Respondent withdrew from the joint account.

The onus was on the applicant to establish that she has no means and or insufficient means to defend the divorce proceedings. Further applicant did not explain or justify how the US$4000 legal costs she is claiming were arrived at. The justification would have been

necessary to enable the Court to determine the reasonable contribution Respondent can make.

It is clear from her submissions that she has based her application on the USD$100 000.00 held in the offshore account which was withdrawn by the respondent, her claim being that respondent has this amount and therefore he should contribute, but as submitted by Respondent, Applicant is claiming half of this amount in her counter claim.

Respondent has provided his current employment contract to substantiate his submission that he earns ZIG24 000.00 which is equivalent to US$900.00 monthly. He produced tax returns from ZIMRA which show that his Practice is not generating any income. He accepted that there was a sum of US$1000 single deposit from the International Medical Fund. The failure by Applicant to produce bank statements that show that these are constant deposits from the Fund supports Respondent's submission that it was just one off deposit

In *Dodo* v *Dodo* 1990 (2) SA 77 (W) the court held,

> "The Applicant is entitled, if the Respondent has the means and she does not have them, to be placed in the position adequately to present her case, relevant factors being the scale on which the applicant intends litigating.''

All having been considered, I find that Applicant has failed to discharge the burden of proof on her to show that she is without means to defend the litigation or prosecute her counter claim, neither has she proven that Respondent has the means to contribute towards her legal costs.

In the result, the application cannot be granted.

It is therefore ordered that:

1.The application be and is hereby dismissed.

2.Costs shall be in the cause.

MHURI J……

Honey & Blanckenberg, Applicant's Legal Practitioners
Messrs Sawyer & Mkushi, Respondent's Legal Practitioners